

The Claremont City Council held a meeting on Wednesday, August 22, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:37 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

None

MAYOR'S NOTES

- Council just got out of a non-meeting regarding whether or not Claremont should join the opioid class action lawsuit against pharmaceutical companies. Council unanimously agreed to join the lawsuit.
- August 25 is the Back-to-School Festival. Free lead testing for children.
- August 25 Steve Marchand, gubernatorial candidate will be at the Sugar River Valley Regional Technical Center at 7 p.m. Open to the public.
- Last week Congresswoman Kuster met with the new President of River Valley Community College. She also met with Mayor Lovett, Mr. Damren and Mr. McNutt.
- Last week Governor Sununu toured some local businesses and had lunch with several members of the community.
- Last week Senator Shaheen visited a substance use facility.

Mr. McNutt's Notes:

- Main Street project is on schedule. It is scheduled to wrap up at the end of October.
- 139 Main Street has a wall that is failing. Absentee landlord. The City is working on this as the property poses a danger to the public.

- 119 and 111 Main Street are two blighted homes (owned by the City) that the City is looking to demolish.
- According to Kevin LaCasse, the Goddard Building project should be underway by the middle of next month.
- The East Street culvert work has been completed.
- TAP Grant project is at NH DOT (Department of Transportation) for final approval. Out to bid early next month. Earliest construction start will be either at the end of October or in the spring.
- Farwell project should start construction mid-September. Environmental abatement is wrapped up.
- JSL (Junior Sports League) building is out for bid; bids due September 28.
- Commended Public Works; received positive feedback on Mountainview Cemetery, some called it “picturesque.”

Mayor Lovett noted work is being done on the handicap crosswalk at Claremont Middle School.

CITIZEN’S FORUM

Mayor Lovett requested citizens be allowed to make comments on whether or not she should sign the Mayors’ letter to override the Governor’s veto of SB365 relative to the use of renewable generation to provide fuel diversity and SB446 relative to net energy metering limits for customer-generators during Citizen’s Forum. There were no Councilor objections.

A motion was made by Mr. Pope and seconded by Mr. Damren to suspend Council Rule 23.

Voice vote: motion carried 9-0.

Rebecca Mackenzie, Ward 2, read a letter she sent to State Representatives in favor of sustaining the Governor’s veto of SB365 and overriding his veto of SB446.

OLD BUSINESS

Ordinance 561 Change Speed Limit on Portion of South Street – Second Reading – Public Hearing

The purpose of this proposed change is to authorize limitation of speed limits on certain streets, as permitted by state law. Currently, the speed limits on all City streets are as set forth in RSA 265:60. However, state law, RSA 265:63, also allows the local community to vary these speed limits where appropriate and on a case-by-case basis. The proposal includes limitation of the speed limit on South Street by decreasing the speed limit on a portion of this street from 30 to 25 miles per hour.

Enactment of this Ordinance will reduce the speed limit on a portion of South Street to 25 miles per hour. The proposed ordinance is recommended by the Traffic Advisory Committee.

Mayor Lovett said this was originally brought forward by then fourth-grader Oliver Beeman.

A motion was made by Mr. Koloski and seconded by Mr. Damren to adopt Ordinance 561 Change Speed Limit on a Portion of South Street.

Mr. Koloski read the explanation of proposed action into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 8-1 with Mr. O'Hearne voting no.

NEW BUSINESS

Resolution 2019-7 SRF Loan for WWTP Aeration Blower – Public Hearing

WHEREAS, the City operates the Wastewater Treatment Plant at 338 Plains Road and wishes to increase the energy efficiency of the plant; and

WHEREAS, the city wishes to also comply with its recent energy audit as well as the provisions within the New Hampshire Department of Environmental Services energy grant; and

WHEREAS, in order to become more energy efficient, the City wishes to replace its aging 125 HP aeration blower at the Wastewater Treatment Plant (the Project) and thus reduce the need for energy; and

WHEREAS, 65% of the electric use at the Wastewater Treatment Plant is for aeration blowers;

NOW THEREFORE BE IT RESOLVED by the City Council to authorize the city manager, or his designees, to take such actions as may be necessary to file an application on behalf of the City for a loan from the State Revolving Fund (SRF) in the amount of \$172,750 in accordance with New Hampshire RSA 486:14 and Code of Administrative Rules Chapter Env Wq 500; and

BE IT FURTHER RESOLVED that Eversource rebates for the project are also expected to reduce the final cost; and

BE IT FURTHER RESOLVED that the city treasurer, with the approval of the city manager, is authorized to borrow up to \$172,750 from the State Revolving Loan Fund (SRF) and to undertake all actions as may be required to accept and expend the funds to replace the 125 HP aeration blower at the Wastewater Treatment Plant; and

BE IT FURTHER RESOLVED to raise and appropriate the amount of \$172,750 for the Project, with up to \$172,750 to come from the proceeds of said SRF loan (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents, including the loan agreement, related to this resolution, and the city treasurer is hereby authorized to act on behalf of the Sewer Enterprise Fund by signing monetary disbursements. *(2/3 Vote Required)*

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt Resolution 2019-7 SRF Loan for WWTP Aeration Blower.

Mr. Damren read the resolution into the record.

Vic St. Pierre, Assistant Public Works Director, said the existing blowers are 33 years old and are not as efficient as newer ones. An energy evaluation recommended new blowers. This loan has 50% forgiveness. The City's cost will be about \$86,000 with this grant. He doesn't know what the Eversource rebate will be, yet. Without the rebate, the payback will be about 2.4 years through energy savings. Energy use will be 50% of what it was last year.

Mr. St. Pierre talked about other efficiencies such as the solar array; cleaning the pipe, so water can be taken from the reservoir instead of the Sugar River; and the LED lights.

He said the new blowers will be quieter and more efficient. Electrical updates will need to be done next year.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett – yes

Motion carried 9-0.

Housing Discussion

George Reagan, Administrator of the Housing Awareness Program at New Hampshire Housing, gave some background on NH Housing. Their mission is to help provide safe, affordable housing in NH. They provide housing choice vouchers and they provide financing for projects such as the Goddard Block through tax credits. He does housing education/advocacy. He said we are starting to see signs of recovery from the recession; he has seen an increase in housing prices. Rent costs never declined during the recession.

- Upper Valley/Lake Sunapee RPC median purchase price of existing homes: \$225,000; median purchase price of new homes: \$379,266 (24 homes).
- Claremont owner median income of \$60,469 can afford a \$195,500 home; median purchase price existing homes: \$125,000 (82 homes); median purchase price new homes: \$240,000 (1 in 2016).
- Upper Valley/Lake Sunapee RPC median rent 2 bedroom: \$1,150 (to be affordable requires income of \$46,000)
- Claremont median renter income: \$30,964; median rent 2 bedroom \$986 (30) (to be affordable requires income of \$39,500); median rent all: \$986 (49); vacancy rate 2 bedroom: 1.3%; vacancy rate all: 1.1%
- Balanced housing market is about 5%

Mr. Reagan talked about the Workforce Housing Law. Affordable is what people can afford. Workforce housing is based on median income. Affordable is not more than 30% of income. Sullivan County's median income is \$71,600; estimated maximum affordable purchase price is \$230,000. Sullivan County renters' income is \$38,660; estimated maximum affordable monthly rent is \$970.

There was a discussion of the need for senior housing, or rather, housing that seniors will like.

Steve Schneider, Executive Director of Upper Valley Lake Sunapee Regional Planning Commission (UVLSRPC) talked about a needs assessment to get a true picture of what the housing needs are. Housing needs to be close to transit in order to allow people to age in place. Hanover/Lebanon hospital needs 1,000 to 1,500 more units for staff. Housing needs to be attractive to younger folks. They will engage many groups for the needs assessment. Housing is the key issue that will determine the long-term success of not only Claremont, but the region, as a whole.

Mike McCrory, City Planner, said in the 2017 Master Plan, Housing Chapter, there are two major goals: improve existing housing stock and encourage rehabilitation of certain properties. He just celebrated his two-year anniversary working full-time for the City. Before that, he spent five years working with the UVLSRPC. He has seen progress in the City in the last two years. An initiative has started to look at the land use regulations. There may be proposed changes to the zoning ordinances in the spring.

RSA 79-E – Expanding District Discussion

On July 22, 2015, the City Council approved Resolution 2016-11, which adopted the provisions of NH RSA 79-E "Community Revitalization Tax Relief Incentive." The program is designed to enhance downtown and city centers by providing property tax incentives for the rehabilitation, or in some instances, replacement, of qualifying real estate improvement projects. The buildings designated by the resolution as qualified structures for the program were specifically located in the Claremont Historic District.

The question at issue is whether the 79-E program should be expanded using a different definition of “downtown or city center” than the Historic District to allow more qualified structures to be eligible for the benefit.

Nancy Merrill, Planning and Development Director, said the existing Historic District contains about 200 structures. The suggested area would include about 1,00 structures.

After discussion, Council agreed to bring this back as an agenda item at the September 12 Council meeting.

Food Truck Discussion

Ms. Merrill said most state and local ordinances go back to the 1920s and refer to hawkers and peddlers and itinerant vendors. None anticipated food trucks. Other communities around the state are looking at how to define mobile food trucks versus mobile food carts. It is consistent across the state to require annual health inspections and to require owner contact information. If using City property, they are defined spaces. Portsmouth requires spaces to be bid with a minimum bid of \$5,000. A couple of potential locations in Claremont could be River Road or the large parking lot on North Street. Most communities frown on food carts because of parking issues.

Mayor Lovett said the ordinance regarding Food Service Establishments was last updated in 1987. She suggested sending that section of Chapter 8 to the Policy Committee and working with the Licensing Board and the Planning and Development Department to come up with a proposed ordinance. The Policy Committee will discuss this at its September 20 meeting and she hoped to be able to present it to the Council at the September 26 meeting.

David Spydell, Claremont resident, said he owns a food truck and that it took a year to get a permit/license through the state. There are numerous licenses you have to get. To make a food truck work, you have to go to a business area such as River Road, go someplace where there is traffic or go to downtown, where people walk by.

Mayor Lovett suggested Mr. Spydell attend the September 20 Policy Committee meeting, or if he is not available, to send information/questions to the Policy Committee or the Council Clerk.

Mrs. Spydell said electric is needed to avoid having to use a generator.

Discussion of Adoption of RSA 72:61-72

These RSAs include Solar Energy Systems Exemption, Wind-Powered Energy Systems Exemption, and Wood Heating Energy Systems Exemption.

Mayor Lovett said RSA 72:61-72 would authorize the City to make use of tax exemptions. It is a tax neutral policy. This would incentivize residents to move toward that type of energy. By adding that to their homes, the City is exempting the added value of installing that system.

Several communities around Claremont have adopted these exemptions. She can send more information if the Council wants to move forward to identify the parameters.

Mr. McNutt will coordinate to have the Assessing Department attend the meeting and share information.

Mayor Lovett brought up the Governor's vetoes of SB365 relative to the use of renewable generation to provide fuel diversity and SB446 relative to net energy metering limits for customer-generators and the request to override them. She said the Mayor of Franklin had asked her to sign a letter, along with other NH Mayors, requesting to override the vetoes. She said SB365 was problematic because of the subsidy for Wheelabrator. According to OSI (Office of Strategic Initiative), the reason the Governor vetoed it is because in 2017, SB129 was a subsidy for the six biomass plants listed in SB365. There is an additional subsidy in SB365. Even with the subsidy, they will operate in the red. Four of the six plants are foreign owned. She said not overriding the veto of SB365, people will lose jobs. It is problematic for communities who have biomass plants because they depend on that for economic reasons.

Mayor Lovett said she would support overriding the veto of SB446. From what is written in the energy chapter of the Master Plan, there is already a foundation of moving toward renewable energy. Being able to generate renewable energy is a plus. The legislature has to vote on this on September 13.

Walt Stapleton, Ward 3, asked for clarification regarding Mayor Lovett's position on SB365 and SB446. Mayor Lovett said NHMA supports the override of the Governor's veto of both bills. She doesn't want members of the Council to take a position prematurely.

Rebecca MacKenzie, Ward 2, said the Claremont Energy Advisory Committee will start soon. The energy chapter of the Master Plan is clear about moving forward with renewable energy. She wants to support the Governor's veto of SB365 and ask for an override of the Governor's veto of SB446 to expand renewal solar energy in our area.

Mr. Pope does not want to override SB365. SB446 would increase the net metering from 1 megawatt to 5 megawatt which would cut out a lot of smaller vendors. He would support writing a letter to override SB446.

Ms. MacKenzie said she would recommend taking more time to consider SB446. Her understanding is that it would not affect small net metering.

Mayor Lovett asked anyone who had questions to send them to the Claremont Energy Advisory Committee through the Council Clerk.

There was a consensus of the Council to meet on Monday, September 10, 6:30 p.m., for one hour to discuss this further.

Mr. McNutt said he will not be available for the September 10th meeting.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Koloski would like to talk about the City-owned land parcels next to the Visitors Center/Green for a potential housing area. Mr. McNutt said the EPA is closing out a project on the former Synergy site. He doesn't know when it will be done.

Because of the late hour, Mayor Lovett asked to move tonight's Non-Public Session to the September 12th meeting.

There was a consensus of a majority of the Council. Mr. Koloski objected as he would prefer to do it tonight.

Mr. Koloski asked about further steps for closing out the Synergy site. Mr. McNutt will check.

Mr. O'Hearne said there needs to be a discussion of procedure (i.e. reading into the record only the explanation of proposed action, but not the ordinance); he had a problem with that. He asked about the status of the union negotiations. Mayor Lovett asked Mr. McNutt to put that in his City Manager's Report.

Mr. O'Hearne said in the North Street parking lot there is a red Saab with a flat tire and a For Sale sign that has been sitting there for a while.

Mr. Pope would like to readdress truck routes. Trucks going around the square make a lot of noise. Mayor Lovett said that will be folded into the downtown revitalization project. Mr. McNutt said some of these are state routes. He will ask NH DOT (Department of Transportation) to come to a meeting.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:31 p.m., a motion was made by Mr. Damren and seconded by Ms. Kier to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council